

Botta Mohan Vasudev Yadav Alias Padu vs The State Of Andhra Pradesh on 14 November, 2019

Author: Cheekati Manavendranath Roy

Bench: Cheekati Manavendranath Roy

THE HON'BLE SRI JUSTICE CHEEKATI MANAVENDRANATH ROY

Criminal Petition No.6717 of 2019

ORDER:

This Criminal Petition under Section 438 Cr.P.C. is filed to enlarge the petitioner on bail in the event of his arrest.

The petitioner herein is the sole accused in Crime No.605 of 2019 of Rajahmundry III Town Police Station, East Godavari District. The alleged offences against the petitioner are under Sections 354-D, 323 and 506 of IPC.

Briefly stated, it is the case of the prosecution that the petitioner has been regularly following the de facto complainant and insisting her to marry him and that he is also falsely propagating that she has married him and has been harassing her and thereby committed the aforesaid offences.

Heard learned counsel for the petitioner and the learned Additional Public Prosecutor for the respondent-State.

Learned counsel for the petitioner would submit that the marriage of the petitioner and the de facto complainant was solemnized on 18.08.2018 at 7.00 P.M. in Venkateswara Swamy Temple at Pocharam, in Singapore Township of Hyderabad. Thereafter, he issued legal notice on 19.09.2019 to the de facto complainant to join his company to lead conjugal life and as she did not respond to his notice that he has filed a petition under Section 9 of the Hindu Marriage Act for restitution of conjugal rights on 23.09.2019 in the Court. Therefore, she has filed this false case on the same day i.e. on 23.09.2019. The petitioner 2 CMR, J.

was falsely implicated in this case and he is innocent and thereby he prayed to grant anticipatory bail to the petitioner.

Learned Additional Public Prosecutor for the respondent- State opposed the bail application. He would submit that no marriage has taken place between the petitioner and the de facto complainant as alleged by the petitioner and it is also a false propaganda being made by the petitioner. In fact, this is the main allegation in the complaint lodged by the de facto complainant. He would further submit that the legal notice and the petition filed for restitution of conjugal rights are pressed into service to falsely propagate that the marriage of the petitioner was performed with the de facto

complainant. He would submit that the petitioner has been harassing the de facto complainant since long time and as she did not accept his proposal for marriage that he has been indulging in these activities and thereby he prayed for dismissal of this petition.

Perused the record.

In view of the fact that the factum of marriage between the petitioner and the de facto complainant as contended by the petitioner is specifically denied by the prosecution, the initial burden is on the petitioner to establish the said factum of marriage that he married the de facto complainant on 18.08.2018. No evidence whatsoever is produced in proof of the said marriage. Except the copy of the legal notice dated 19.09.2019 and the copy of the petition filed seeking restitution of conjugal rights, dated 23.09.2019, no other acceptable legal 3 CMR, J.

evidence is produced in proof of the marriage. These two copies of legal notice and the petition are self-serving documents. They cannot be taken as a valid proof of marriage. When it is alleged that the marriage took place on 18.08.2018 in a temple, definitely there would be evidence to establish the said fact. As already noticed supra, no such proof is produced. Therefore, there is no valid basis at this stage to hold that any such marriage took place as alleged by the petitioner.

A perusal of the contents of the report shows that the petitioner has been following the de facto complainant for the last several years and has been harassing her making demand to marry him. Therefore, Section 354-D of IPC is clearly attracted and it amounts to stalking. So, in view of the seriousness of the allegation, this Court is of the considered view that this is not a fit case where an anticipatory bail can be granted to the petitioner.

In the result, the Criminal Petition is dismissed.

MANAVENDRANATH ROY Date:14.11.2019 cs JUSTICE CHEEKATI